

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED

SENATE BILL NO. 1360

By: Seifried of the Senate

and

Moore of the House

COMMITTEE SUBSTITUTE

An Act relating to mathematics instruction; amending 70 O.S. 2021, Section 1210.508, as last amended by Section 10, Chapter 492, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.508), which relates to the Oklahoma School Testing Program Act; modifying date by which certain report is to be submitted; amending Sections 2, 3, 4, 5, and 8, Chapter 492, O.S.L. 2025 (70 O.S. Supp. 2025, Sections 1210.900, 1210.901, 1210.902, 1210.903, and 1210.907), which relate to the Oklahoma Math Achievement and Proficiency Act; directing certain teachers to have access to certain training; creating the Office of Mathematics Improvement within the State Department of Education within certain time period; providing for appointment of Director; providing qualifications for and duties of Director; eliminating references to screening instrument selection requirements and usage requirements; requiring school districts to utilize the screening instrument in the 2027-2028 school year; providing a base allocation of mathematics funds to each school district; clarifying base allocation amount; removing language pertaining to distributions based on strong math plans and child count reports; removing references to a per-student allocation amount; providing purposes for the base allocation; removing language regarding spending for professional development training for teachers; eliminating references to professional development training requirements; allowing allocation of

1 supplemental weighted funds to districts for certain
2 intervention services; requiring the State Department
3 of Education to promulgate rules regarding
4 supplemental weighted funding and expectations;
5 providing supplemental distribution categories;
6 describing supplemental funding uses; requiring
7 certain student reports for funding calculations;
8 providing documentation requirements; providing
9 parameters for receiving supplemental funds;
10 providing the State Department of Education the
11 option to request additional reports; removing
12 language regarding a list of professional development
13 programs and stipends received for attending such
14 programs; providing certain amount of funds for
15 district math improvement incentives; providing
16 incentive parameters; removing language requiring the
17 Department to provide certain list of qualified
18 entities; modifying school year in which certain
19 students are to begin being screened for dyscalculia;
20 allowing school districts to administer certain
21 screening tool prior to certain school year;
22 modifying date by which the State Board of Education
23 is to develop certain policies; requiring development
24 in certain consultation; requiring the Board to adopt
a list of certain screening tools based on certain
recommendations; modifying date by which public
school districts and the Department are to begin
reporting certain data; updating statutory language;
updating statutory references; providing an effective
date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 1210.508, as
last amended by Section 10, Chapter 492, O.S.L. 2025 (70 O.S. Supp.
2025, Section 1210.508), is amended to read as follows:

Section 1210.508. A. 1. By no later than December 31, 2016,
the State Board of Education shall adopt a statewide system of
student assessments in compliance with the Elementary and Secondary

Education Act of 1965 (ESEA), as reauthorized and amended by P.L. No. 114-95, also known as the Every Student Succeeds Act (ESSA).

2. The statewide student assessment system adopted by the Board pursuant to this subsection shall be aligned with the Oklahoma Academic Standards as adopted by the Board and which prepare students for college and careers.

B. 1. The Board shall issue a request for proposals for the selection of assessments to be administered to students in grades three through twelve as a part of the statewide student assessment system adopted by the Board pursuant to this section.

2. The Board shall adopt assessments from the selected proposals that were submitted pursuant to paragraph 1 of this subsection. The adopted assessments shall be administered by the Board for a period that is in coordination with the six-year subject area textbook adoption cycle unless the vendor does not fulfill the terms of the contract or fails to comply with or violates the terms of the contract. The Board shall administer the assessments beginning with the 2017-2018 school year.

C. The statewide student assessment system adopted by the Board pursuant to this section shall include assessments that:

1. Are aligned with the Oklahoma subject matter standards as adopted by the Board;

2. Provide a measure of comparability among other states;

1 3. Yield both norm-referenced scores and criterion-referenced
2 scores;

3 4. Have a track record of statistical reliability and accuracy;
4 and

5 5. For assessments administered in high school, provide a
6 measure of future academic performance.

7 D. For the 2016-2017 school year, the Board shall administer
8 assessments in:

9 1. English Language Arts or reading and mathematics in grades
10 three through eight and at least once in high school, during the
11 grade span of nine through twelve;

12 2. Science not less than once during each grade span of three
13 through five, six through nine, and ten through twelve; and

14 3. United States History not less than once during the grade
15 span of nine through twelve.

16 E. 1. Beginning with the 2017-2018 school year, the statewide
17 student assessment system shall include assessments in:

18 a. English Language Arts and mathematics in grades three
19 through eight and at least once in high school, during
20 the grade span of nine through twelve,

21 b. science not less than once during each grade span of
22 three through five, six through nine, and ten through
23 twelve, and
24

1 c. United States History, with an emphasis on civics, not
2 less than once during the grade span of nine through
3 twelve.

4 2. Beginning with the 2017-2018 school year, the statewide
5 student assessment system may include:

6 a. assessments in reading, writing, and mathematics in
7 certain grades as determined by the Board, and

8 b. contingent upon the availability of funds, an
9 additional nationally recognized college- and career-
10 readiness assessment or assessments as recommended by
11 the State Department of Education, which will be
12 administered to students in high school at no cost to
13 the student.

14 F. 1. Beginning with students entering the ninth grade in the
15 2017-2018 school year, each student shall take the assessment or
16 assessments included in the statewide student assessment system
17 adopted by the Board pursuant to subsection A of this section in
18 order to graduate from a public high school with a standard diploma.
19 All students shall take the assessment or assessments prior to
20 graduation, unless otherwise exempt by law.

21 2. Beginning with students entering the ninth grade in the
22 2017-2018 school year, each student, in addition to taking the
23 assessment or assessments included in the statewide student
24 assessment system adopted by the Board pursuant to subsection A of

1 this section, shall meet any other high school graduation
2 requirements adopted by the Board pursuant to Section 5 of Enrolled
3 House Bill No. 3218 of the 2nd Session of the 55th Oklahoma
4 Legislature in order to graduate from a public high school with a
5 standard diploma.

6 3. For students who start the ninth grade prior to or during
7 the 2016-2017 school year, school districts shall adopt a plan that
8 establishes the assessment or assessments those students are
9 required to take in order to graduate from a public high school with
10 a standard diploma. The plan may also include any or all of the
11 other high school graduation requirements adopted by the Board
12 pursuant to Section 5 of Enrolled House Bill No. 3218 of the 2nd
13 Session of the 55th Oklahoma Legislature that those students will be
14 required to meet in order to graduate from a public high school with
15 a standard diploma.

16 4. The Board shall promulgate rules to ensure that students who
17 transfer into ~~an Oklahoma~~ a school district in this state from out-
18 of-state after the junior year of high school shall not be denied
19 the opportunity to be awarded a standard diploma due to differing
20 testing requirements.

21 G. In order to provide an indication of the levels of
22 competency attained by the student in a permanent record for
23 potential future employers and institutions of higher education,
24 school districts shall report on the high school transcript of the

1 student the highest-achieved score on the assessment or assessments
2 included in the statewide student assessment system adopted by the
3 Board pursuant to subsection A of this section and any business- and
4 industry-recognized endorsements attained.

5 H. Students who do not perform at a proficiency level on
6 assessments shall be remediated as established in the assessment
7 requirements adopted by the Board pursuant to Section 5 of Enrolled
8 House Bill No. 3218 of the 2nd Session of the 55th Oklahoma
9 Legislature, subject to the availability of funding.

10 I. 1. All assessments required by this section shall measure
11 academic competencies in correlation with the subject matter
12 standards adopted by the Board pursuant to Sections 11-103.6 and 11-
13 103.6a of this title and referred to as the Oklahoma Academic
14 Standards. The State Board of Education shall evaluate the subject
15 matter standards to ensure the competencies reflect high standards,
16 are specific, well-defined, measurable, and challenging, and will
17 prepare elementary students for next-grade-level course work and
18 secondary students for postsecondary studies at institutions of
19 higher education or technology center schools without the need for
20 remediation. All subject matter standards shall reflect the goals
21 as set forth in Section 11-103.6 of this title and of improving the
22 state average of college entrance exam scores.

23 2. The State Department of Education shall annually evaluate
24 the results of the assessments. The State Board of Education shall

1 ensure that preliminary results for all statewide assessments are
2 reported to districts no later than June 20 of each year and are
3 presented in a manner that yields detailed, diagnostic information
4 for the purpose of guiding instruction and student remediation. As
5 improvements are made to the assessments required by this section,
6 the Board shall seek to increase the depth of knowledge assessed for
7 each subject. The State Board of Education shall seek to ensure
8 that data yielded from the assessments required in this section ~~are~~
9 is utilized at the school district level to inform instruction,
10 professional development, school improvement, and remediation for
11 students.

12 3. The Commission for Educational Quality and Accountability
13 shall determine the cut scores for the performance levels on all
14 statewide assessments. The Commission shall conduct an ongoing
15 review to compare the statewide assessment content and performance
16 descriptors with those of other states. Upon receipt of the review,
17 the Commission may adjust the cut scores as necessary.

18 4. The State Board of Education, for the purposes of conducting
19 reliability and validity studies, monitoring contractor adherence to
20 professionally accepted testing standards, and providing
21 recommendations for testing program improvement, shall retain the
22 services of an established, independent agency or organization that
23 is nationally recognized for its technical expertise in educational
24 testing but is not engaged in the development of aptitude or

1 achievement tests for elementary or secondary level grades. These
2 national assessment experts shall annually conduct studies of the
3 reliability and validity of the statewide assessments administered
4 pursuant to this section. Validity studies shall include studies of
5 decision validity and concurrent validity.

6 J. 1. The State Board of Education shall promulgate rules
7 setting the assessment window dates for each statewide assessment so
8 that the assessments are administered according to recommended
9 testing protocols and so that the assessment results are reported
10 back to school districts in a timely manner. The vendor shall
11 provide a final electronic data file of all school site, school
12 district, and state results to the State Department of Education and
13 the Office of Educational Quality and Accountability prior to August
14 20 of each year. The Department shall forward the final data files
15 for each school district and each school site in that district to
16 the school district. The Board shall ensure the contract with the
17 vendor includes a provision that the vendor report assessment
18 results directly to the Office of Educational Quality and
19 Accountability at the same time ~~it is~~ they are reported to the
20 Board.

21 2. State, district, and site level results of all assessments
22 required in this section shall be disaggregated by gender, race,
23 ethnicity, disability status, migrant status, English proficiency,
24 and status as economically disadvantaged, except that such

1 disaggregation shall not be required in a case in which the number
2 of students in a category is insufficient to yield statistically
3 reliable information or the results would reveal personally
4 identifiable information about an individual student. Each school
5 site shall notify the student's parents or legal guardians of the
6 school's performance levels in the Oklahoma School Testing Program
7 as reported in the Oklahoma Educational Indicators Program at the
8 end of each school year.

9 K. The State Board of Education shall be responsible for the
10 field-testing and validation of the statewide assessment system
11 required in subsection A of this section.

12 L. The State Board of Education shall develop, administer, and
13 incorporate as a part of the Oklahoma School Testing Program other
14 assessment programs or procedures including appropriate
15 accommodations for the assessment of students with disabilities as
16 required by the Individuals with Disabilities Education Act (IDEA),
17 20 U.S.C., Section 1400 et seq.

18 M. For purposes of developing and administering alternate
19 assessments for students with the most significant cognitive
20 disabilities, the State Board of Education shall not be subject to
21 subsections D and E of Section 11-103.6a of this title.

22 N. By ~~December 15, 2026~~ December 15, 2028, and annually
23 thereafter, the State Board of Education shall electronically submit
24 a report to the Legislature containing data collected for the most

1 recently completed school year on the number and demographics of
2 students who were eligible for advanced mathematics courses, the
3 number and demographics of students who were placed in advanced
4 mathematics courses, the number and demographics of students placed
5 in mathematics intervention courses, and the number and demographics
6 of students not placed in advanced mathematic courses or mathematic
7 intervention courses. The report shall include information on the
8 type and format of advanced mathematic courses and the type and
9 format of mathematic intervention courses.

10 O. The State Board of Education shall provide guidance on how
11 to best develop programming and courses to ensure all impacted
12 students receive rigorous, academically appropriate instruction in
13 mathematics.

14 SECTION 2. AMENDATORY Section 2, Chapter 492, O.S.L.
15 2025 (70 O.S. Supp. 2025, Section 1210.900), is amended to read as
16 follows:

17 Section 1210.900. A. ~~Sections 2~~ This section through & Section
18 1210.907 of this ~~act~~ title shall be known and may be cited as the
19 "Oklahoma Math Achievement and Proficiency Act".

20 B. The Legislature finds that it is essential for children
21 enrolled in the public schools in this state to develop strong
22 mathematical proficiency early and consistently. The Legislature
23 further finds that clear and visible goals, assessments to determine
24 math proficiency at each school, the use of scientifically based and

1 researched methodologies in math instruction, along with regular and
2 periodic measurements of school math improvement, and accountability
3 at each level of the educational system will result in a significant
4 increase in the number of children performing at or above grade
5 level in mathematics.

6 C. The purpose of the Oklahoma Math Achievement and Proficiency
7 Act is to ensure that student achievement in math is encouraged and
8 progression from one grade to another is determined, in part, upon
9 proficiency in mathematics, that school district board of education
10 policies facilitate promotion of advanced math instruction and
11 intervention services to address student math needs, and that each
12 student and his or her parent or legal guardian be informed of the
13 student's progress in mathematics.

14 D. Each public school district in this state shall ensure that
15 all students receive a well-rounded education focused on building
16 deep foundations in mathematics, reading, and writing. The State
17 Board of Education shall encourage school districts to integrate the
18 teaching of the other curricular areas in subject matter standards
19 adopted by the Board with the instruction of mathematics, reading,
20 and writing.

21 E. All teachers of mathematics in the public schools in this
22 state shall have access to training in evidence-based professional
23 development programs to deepen their content knowledge, learn
24 specific effective and impactful teaching strategies, and develop

1 productive dispositions toward math, and then incorporate into
2 instruction the foundational elements of math instruction, including
3 the development of grade-level appropriate mathematical proficiency
4 which is a combination of real-world problem-solving skills,
5 procedural fluency, conceptual understanding, and productive
6 dispositions.

7 F. 1. There is hereby created within the State Department of
8 Education an Office of Mathematics Improvement, which shall be
9 created within ninety (90) days of the effective date of this act.
10 The Superintendent of Public Instruction shall appoint a Director of
11 the Office of Mathematics Improvement whose exclusive focus shall be
12 mathematics instruction for students in grades kindergarten through
13 five. The Director shall have experience in administrative duties,
14 in teaching mathematics in a public or private elementary school,
15 and as an elementary mathematics specialist, coach, or
16 administrator.

17 2. The Director of the Office of Mathematics Improvement shall:

- 18 a. monitor implementation of a single statewide screening
19 instrument, diagnostic assessments, and formative
20 assessments for grades kindergarten through five to
21 identify students in need of support for key numeracy
22 concepts,
- 23 b. recommend training and support for educators for the
24 effective implementation and interpretation of

1 diagnostic tools. The diagnostic tool shall be used
2 with students who have been identified with
3 deficiencies in mathematics based on a single
4 statewide screening instrument, diagnostic
5 assessments, formative assessments, benchmark
6 assessments, teacher observation, or any combination
7 thereof,

8 c. designate a team of educators to explore the
9 connection between difficulties with number sense and
10 dyscalculia as well as possible effective screening
11 instruments,

12 d. commit necessary resources to understanding the needs
13 of students struggling with number sense or
14 dyscalculia, or both, before implementing
15 instructional practices or assessments that could
16 adversely affect student learning,

17 e. monitor the implementation and progress of summer
18 mathematics academies,

19 f. recommend changes and improvements to any professional
20 development providers and public schools in this state
21 based on data collected and analyzed by the Office of
22 Mathematics Improvement, and

23 g. monitor the implementation and progress of the
24 Oklahoma Math Achievement and Proficiency Act.

SECTION 3. AMENDATORY Section 3, Chapter 492, O.S.L.

2025 (70 O.S. Supp. 2025, Section 1210.901), is amended to read as follows:

Section 1210.901. A. To identify students who have a math deficiency including students with characteristics of dyscalculia, each student enrolled in second, third, fourth, and fifth grade in a public school in this state shall be screened at the beginning, middle, and end of each school year for math proficiency including, but not limited to, real-world problem-solving skills, procedural fluency, conceptual understanding, and productive dispositions. A screening instrument approved by the State Board of Education pursuant to the provisions of Section 1210.508C of this title shall be utilized for the purposes of this section. The screening instrument as described in Section 1210.508C of this title shall be a single instrument that measures both math and reading skills. ~~In determining which screening instrument to approve, the State Board of Education shall take into consideration, at a minimum, the following factors:~~

~~1. The time required to conduct the screening instrument with the intention of minimizing the impact on instructional time;~~

~~2. The timeliness in reporting screening instrument results to teachers, administrators, and parents or legal guardians of students; and~~

1 ~~3. The integration of the screening instrument into the math~~
2 ~~curriculum.~~

3 B. Beginning School districts shall administer the screening
4 instrument described in subsection A of this section beginning in
5 the 2026-2027 2027-2028 school year, the State Board of Education
6 shall approve a list of screening instruments for use at the
7 beginning, middle, and end of the school year for monitoring
8 progress and measurement of math proficiency as required in
9 subsection A of this section. The screening instrument shall:

10 ~~1. Assess mathematical proficiency, which is a combination of~~
11 ~~real-world problem-solving skills, procedural fluency, conceptual~~
12 ~~understanding, and productive dispositions for the grade level as~~
13 ~~defined by the state's subject matter standards;~~

14 ~~2. Document the validity and reliability of each assessment;~~

15 ~~3. Be used for identifying students who are at risk for math~~
16 ~~deficiencies and for progress monitoring throughout the school year;~~

17 ~~4. Be used to assess students with disabilities and English~~
18 ~~language learners; and~~

19 ~~5. Be accompanied by a data management system that provides~~
20 ~~profiles of students, class, grade level, and school building. The~~
21 ~~profiles shall identify each student's instructional point of need,~~
22 ~~competency for advanced math coursework, and math proficiency level.~~
23 ~~The State Board of Education shall also determine other comparable~~
24

1 ~~math assessments for diagnostic purposes to be used for students at~~
2 ~~risk of math failure.~~

3 C. 1. Exemptions to the screening requirements ~~required by~~ of
4 this section may be provided to students who have documented
5 evidence that they meet at least one of the following criteria as
6 related to the provision of classroom instruction:

7 a. the student participates in the Oklahoma Alternate
8 Assessment Program (OAAP) and is taught using
9 alternate methods,

10 b. the student's primary expressive or receptive
11 communication is sign language,

12 c. the student's primary form of written or read text is
13 Braille, or

14 d. the student's primary expressive or receptive language
15 is not English, the student is identified as an
16 English learner using a state-approved identification
17 assessment, and the student has had less than one (1)
18 school year of instruction in an English-learner
19 program.

20 2. A public school that grants an exemption pursuant to
21 paragraph 1 of this subsection shall provide ongoing evidence of
22 student progression toward English language acquisition with the
23 same frequency as administration of screening assessments. Evidence
24 may include, but not be limited to, student progression toward OAAP

1 math essential elements, proficiency in sign language and
2 mathematical reasoning, and proficiency in Braille and mathematical
3 concepts.

4 D. 1. Students who are administered a screening instrument
5 pursuant to subsection A of this section and are found to be
6 exceeding grade-level targets shall be provided advanced learning
7 opportunities in mathematics approved for that student's grade
8 level. No student who qualifies pursuant to this subsection shall
9 be removed from the advanced learning opportunity provided to the
10 student unless a parent or legal guardian of the student provides
11 written consent for the student to be excluded or removed after
12 being adequately informed that the student's placement was
13 determined by the student's achievement on the screening instrument.

14 2. Students who are administered a screening instrument
15 pursuant to subsection A of this section and are found not to be
16 meeting grade-level targets shall be provided a program of math
17 instruction designed to enable students to acquire the appropriate
18 grade-level math proficiency. The program of math instruction shall
19 be based on scientific math research and align with the subject
20 matter standards adopted by the State Board of Education. A program
21 of math instruction shall include:

22 a. sufficient additional in-school instructional time for
23 the acquisition of mathematical proficiency, which is
24 a combination of real-world problem-solving skills,

- procedural fluency, conceptual understanding, and
productive dispositions,
- b. if necessary and if funding is available, tutorial instruction after regular school hours, on Saturdays, and during summer; however, such instruction may not be counted toward the ~~one-hundred-eighty-day~~ one-hundred-eighty-one-day or ~~one-thousand-eighty-hour~~ one-thousand-eighty-six-hour school year required in Section 1-109 of ~~Title 70 of the Oklahoma Statutes~~ this title,
- c. assessments identified for diagnostic purposes and periodic monitoring to measure the acquisition of math proficiency including, but not limited to, real-world problem-solving skills, procedural fluency, conceptual understanding, and productive dispositions, as identified in the student's program of math instruction,
- d. high-quality instructional materials grounded in scientifically based math research, and
- e. a means of providing every family of a student in second, third, fourth, and fifth grade access to free online evidence-based math instruction resources to support the student's math development at home.

1 3. A student enrolled in second, third, fourth, ~~and~~ or fifth
2 grade who exhibits a deficiency in math at any time based on the
3 screening instrument administered pursuant to subsection A of this
4 section shall receive an individual math intervention plan no later
5 than thirty (30) days after the identification of the deficiency in
6 math. The math intervention plan shall be provided in addition to
7 core math instruction that is provided to all students. The math
8 intervention plan shall:

- 9 a. describe the research-based math intervention services
10 the student will receive to remedy the deficiency in
11 math,
- 12 b. provide explicit and systematic instruction in real-
13 world problem-solving skills, procedural fluency,
14 conceptual understanding, and productive dispositions,
15 as applicable,
- 16 c. monitor the math progress of each student's math
17 proficiency throughout the school year and adjust
18 instruction according to the student's needs, and
- 19 d. continue until the student is determined to be meeting
20 grade-level targets in math based on screening
21 instruments administered pursuant to subsection A of
22 this section or assessments identified for diagnostic
23 purposes and periodic monitoring pursuant to
24 subparagraph c of paragraph 2 of this subsection.

1 4. The math intervention plan for each student identified with
2 a deficiency in math shall be developed by a student math
3 proficiency team and shall include supplemental instructional
4 services and supports. Each team shall be comprised of:

5 a. the parent or legal guardian of the student,

6 b. the teacher assigned to the student who had
7 responsibility for math instruction in that academic
8 year,

9 c. a teacher who is responsible for math instruction and
10 is assigned to teach in the next grade level of the
11 student, and

12 d. a teacher who specializes in math interventions, if
13 one is available.

14 5. A school district shall notify the parent or legal guardian
15 of any student in second, third, fourth, and fifth grade who
16 exhibits a deficiency in math at any time based on the screening
17 instrument administered pursuant to subsection A of this section.
18 The notification shall occur no later than thirty (30) days after
19 the identification of the deficiency in math.

20 SECTION 4. AMENDATORY Section 4, Chapter 492, O.S.L.
21 2025 (70 O.S. Supp. 2025, Section 1210.902), is amended to read as
22 follows:

23 Section 1210.902. A. Contingent on the provision of
24 appropriated funds designated for the Oklahoma Math Achievement and

1 Proficiency Act, ~~public~~ each school districts may be allocated
2 ~~monies~~ district shall receive a base mathematics allocation
3 calculated on a per-student basis for each enrolled second-, third-,
4 fourth-, and fifth-grade student as reported in the October 1
5 enrollment counts of the current school year ~~who is found to be in~~
6 ~~need of remediation or intensive intervention services in~~
7 ~~mathematics.~~ The State Board of Education shall allocate not less
8 than forty percent (40%) of funds appropriated for the purposes of
9 this section to support the base mathematics allocation. The base
10 mathematics allocation shall ~~be distributed to each public school~~
11 ~~district upon approval of the strong math plan for the school~~
12 ~~district by the State Board of Education and the submittal of a~~
13 ~~child-count report to the State Department of Education that details~~
14 ~~the number of students identified as needing remediation or~~
15 ~~intensive intervention services in mathematics.~~ To determine a per-
16 student allocation amount, the total amount of funds available for
17 allocation each year shall be divided by the total number of
18 students in the state identified as in need of remediation or
19 intensive intervention services in mathematics as provided for in
20 Section 3 of this act. Each public school district shall be
21 allocated an amount equal to the per-student allocation amount
22 multiplied by the number of identified students enrolled in the
23 school district support the prevention of math deficiencies and the
24 implementation of strong core math instruction within Tier 1 of a

1 multi-tiered system of supports (MTSS) framework including, but not
2 limited to:

3 1. Evidence-based core math instruction and high-quality
4 instructional materials grounded in scientifically based math
5 research;

6 2. Universal screenings and diagnostic assessments necessary to
7 identify students at risk for math deficiencies;

8 3. Progress monitoring and data use to inform instructional
9 decisions;

10 4. Family math instruction resources and engagement activities
11 aligned with classroom instruction; and

12 5. Professional development and instructional coaching
13 necessary to implement the district strong math plan.

14 B. ~~Public~~ 1. In addition to the base mathematics allocation
15 provided pursuant to subsection A of this section, school districts
16 ~~receiving more than Two Thousand Five Hundred Dollars (\$2,500.00)~~
17 ~~pursuant to subsection A of this section shall spend no less than~~
18 ~~ten percent (10%) to provide professional development for teachers.~~
19 ~~The professional development shall include training in~~
20 ~~scientifically based math research including how students learn~~
21 ~~mathematical concepts; training in providing explicit and systematic~~
22 ~~instruction in real-world problem-solving skills, procedural~~
23 ~~fluency, conceptual understanding, and productive dispositions;~~
24 ~~implementing math strategies that research has shown to be~~

~~successful in improving math proficiency among students with math difficulties; courses leading to a micro-credential in mathematics; and instructional materials required for implementation~~ shall receive supplemental weighted funding for students identified through screening and progress-monitoring data as requiring additional math intervention services within an MTSS framework. The State Board of Education shall allocate not less than thirty percent (30%) of funds appropriated for the purposes of this section to support supplemental weighted funding and shall promulgate rules establishing the methodology for calculating weights, documentation requirements, and procedures for verifying intervention participation. Supplemental weighted funding shall support intervention services beyond Tier 1 core instruction and shall be distributed according to the following categories:

a. Tier 2 supplemental intervention weight: students identified as requiring targeted math intervention beyond Tier 1 core instruction shall generate supplemental funding to support additional instructional time, reduced group size, and evidence-based intervention, and

b. Tier 3 intensive intervention weight: students identified as demonstrating a significant math deficiency requiring intensive, individualized, or highly targeted intervention shall generate

supplemental funding reflecting the increased instructional intensity required at the Tier 3 level.

2. Supplemental weighted funding received pursuant to this subsection shall be used exclusively for intervention services beyond Tier 1 core instruction including:

- a. additional instructional time devoted to math intervention,
- b. reduced instructional group sizes necessary to deliver intensive instruction,
- c. specialized instructional materials and intervention programs aligned with scientifically based math research,
- d. compensation for educators delivering intervention services, and
- e. professional development necessary to ensure educators providing intervention services have extensive training in scientifically based math research including how students learn mathematical concepts; training in providing explicit and systematic instruction in real-world problem-solving skills, procedural fluency, conceptual understanding, and productive dispositions; implementing math strategies that research has shown to be successful in improving math proficiency among students with math

1 difficulties; and courses leading to a micro-
2 credential in mathematics.

3 3. Students shall be counted for purposes of supplemental
4 weighted funding only when the school district has documented and
5 electronically reported to the State Department of Education that
6 the student is receiving intervention services consistent with the
7 level of instructional intensity required at the applicable tier.

8 4. School districts shall maintain documentation demonstrating:

9 a. identification of the student through an approved
10 screening instrument and supporting diagnostic or
11 progress-monitoring data,

12 b. implementation of an intervention plan specifying the
13 instructional approach, frequency, duration, and group
14 size of intervention services, and

15 c. ongoing progress monitoring used to determine the
16 effectiveness of the intervention and inform
17 instructional adjustments.

18 5. Students shall not generate supplemental weighted funding
19 unless intervention services are provided beyond Tier 1 core
20 instruction. The State Department of Education may review
21 intervention documentation and program implementation to verify
22 eligibility for supplemental weighted funding allocated pursuant to
23 this section.

1 6. The State Board of Education shall promulgate rules
2 establishing reasonable expectations for the proportion of students
3 receiving supplemental and intensive services within an MTSS
4 framework.

5 7. When the reported percentage of students receiving Tier 2 or
6 Tier 3 intervention services significantly exceeds expected ranges,
7 the State Department of Education may require additional
8 documentation or provide technical assistance to ensure intervention
9 services are implemented within the instructional intensity required
10 at each tier.

11 ~~C. The State Department of Education shall approve and publish~~
12 ~~a list of professional development programs that are evidence based~~
13 ~~and directly address the cognitive science of how students learn~~
14 ~~mathematics for which districts are permitted to use the funds~~
15 ~~received pursuant to this section.~~

16 ~~D. If a teacher attends and completes a professional~~
17 ~~development institute in elementary math approved by the Commission~~
18 ~~for Educational Quality and Accountability during the summer or when~~
19 ~~school is not in session, the teacher may receive a stipend equal to~~
20 ~~the amount of the cost for a substitute teacher, based on the amount~~
21 ~~of funds allocated~~ 1. To encourage continuous improvement in
22 student math outcomes and to support the sustainability of effective
23 intervention services, the State Board of Education shall allocate
24 up to thirty percent (30%) of funds appropriated for the purposes of

1 this section for math improvement incentives and shall promulgate
2 rules establishing criteria for determining eligibility for such
3 incentives, which shall include demonstration of measurable
4 improvement in student math performance.

5 2. Math improvement incentives may include recognition of:

- 6 a. students who demonstrate sufficient progress to exit
7 Tier 3 intensive intervention,
8 b. students who demonstrate sufficient progress to exit
9 Tier 2 supplemental intervention, and
10 c. school districts or school sites that demonstrate
11 measurable reductions in the number or percentage of
12 students requiring supplemental or intensive
13 intervention.

14 SECTION 5. AMENDATORY Section 5, Chapter 492, O.S.L.
15 2025 (70 O.S. Supp. 2025, Section 1210.903), is amended to read as
16 follows:

17 Section 1210.903. A. If a teacher determines that a student in
18 second, third, fourth, and fifth grade is performing above grade
19 level in mathematics by the start of the second quarter of the
20 school year, the parent or legal guardian of the student shall be
21 notified of:

- 22 1. The math proficiency level of the student;
23 2. The program of advanced math instruction available for the
24 student; and

1 3. The potential for the student to participate in a summer
2 academy or other program designed to assist the student in excelling
3 in mathematics.

4 B. If a teacher determines that a student in second, third,
5 fourth, ~~and~~ or fifth grade is not performing at grade level in
6 mathematics by the start of the second quarter of the school year,
7 the parent or legal guardian of the student shall be notified of:

8 1. The math proficiency level of the student;

9 2. The program of math instruction for the student as required
10 pursuant to ~~this act~~ the Oklahoma Math Achievement and Proficiency
11 Act; and

12 3. The potential need for the student to participate in a
13 summer academy or other program designed to assist the student in
14 attaining grade-level math proficiency.

15 C. A teacher who determines a student in second, third, fourth,
16 ~~and~~ or fifth grade is exceeding or not meeting grade-level targets
17 for mathematics may, after consultation with the parent or legal
18 guardian of the student, recommend that the student participate in
19 and complete a summer academy or other program.

20 D. Summer academy programs shall be designed to ensure that
21 participating students successfully complete an advanced
22 mathematical program or grade-level competencies in mathematics to
23 enhance next-grade readiness. A summer academy math program shall
24 be a program that incorporates the content of a scientifically

1 research-based professional development program administered by the
2 Commission for Educational Quality and Accountability or a
3 scientifically research-based math program administered by the State
4 Board of Education which is taught by teachers who have successfully
5 completed professional development in the math program. All summer
6 academy programs shall consist of a minimum of three (3) consecutive
7 days. ~~The State Department of Education shall provide a list of~~
8 ~~qualified entities for providing the summer academy programs to all~~
9 ~~schools by April 1, 2026.~~

10 E. School districts may approve an option for students who are
11 unable to attend a summer academy. The optional program may
12 include, but not be limited to, an approved private provider of
13 instruction, approved computer- or Internet-based instruction, or an
14 approved program of math instruction monitored by the parent or
15 legal guardian of the student. Public school districts shall not be
16 required to pay for the optional program but shall clearly
17 communicate to the parent or legal guardian the expectations of the
18 program and any costs that may be involved.

19 F. Subject to the availability of funds, beginning one (1) year
20 after implementation of this section, the requirements of subsection
21 C of this section may be expanded to apply to students in first
22 grade. Each year thereafter, the requirements may be expanded by
23 one grade level until the requirements apply to kindergarten
24 students through fifth-grade students. Summer academy programs

1 shall be designed for each grade level. Nothing in this section
2 shall prevent the State Board of Education or a school district
3 board of education from utilizing private, local, or federal funds
4 to implement the provisions of this section.

5 G. The State Board of Education shall promulgate rules to
6 implement the provisions of this section, which shall include
7 requirements for instructional time for summer academy programs,
8 teacher qualifications, and evaluation of student achievement as a
9 result of summer academy programs or other optional programs.

10 SECTION 6. AMENDATORY Section 8, Chapter 492, O.S.L.
11 2025 (70 O.S. Supp. 2025, Section 1210.907), is amended to read as
12 follows:

13 Section 1210.907. A. Beginning with the ~~2026-2027~~ 2027-2028
14 school year and for each school year thereafter, any student
15 enrolled in second, third, fourth, and fifth grade in a public
16 school in this state who is assessed through the Oklahoma Math
17 Achievement and Proficiency Act pursuant to Section ~~3~~ 1210.901 of
18 this ~~act~~ title, and who is not meeting grade-level targets in
19 mathematics after the beginning-of-the-year screening instrument,
20 shall be screened for dyscalculia. Screening also may be requested
21 for a student by his or her parent or legal guardian, teacher, or
22 counselor. A student who is identified with characteristics of
23 dyscalculia shall not be required to be rescreened unless requested
24 by his or her parent or legal guardian. Nothing in this section

1 shall preclude a school district from administering a dyscalculia
2 screening tool to identify, refer, evaluate, or provide appropriate
3 services to any student suspected of having dyscalculia or another
4 math-related disorder prior to the 2027-2028 school year.

5 B. No later than ~~December 31, 2025~~ February 28, 2027, the State
6 Board of Education, in consultation with the Office of Mathematics
7 Improvement within the State Department of Education, shall develop
8 policies for dyscalculia screening required pursuant to this section
9 and shall include, but not be limited to:

10 1. The definition and characteristics of dyscalculia and
11 related disorders;

12 2. The process for referring students in grades two through
13 five for screening;

14 3. A process for providing notification to parents or legal
15 guardians of the use of a qualified ~~dyscalculia-screening~~
16 dyscalculia screening tool and notification of the results of the
17 screening;

18 4. A process for providing the parents or legal guardians of
19 students screened for dyscalculia with information and resource
20 material regarding dyscalculia;

21 5. A process for monitoring the student's progress after the
22 positive identification of characteristics of dyscalculia or other
23 math-related disorders; and
24

1 6. Requirements and qualifications for screeners that
2 demonstrate an understanding of and training to administer the
3 screening instrument.

4 C. The Board shall adopt a list of approved qualified
5 dyscalculia screening tools based on recommendations from the Office
6 of Mathematics Improvement within the State Department of Education
7 that address developmentally appropriate components.

8 D. Screening shall be conducted in accordance with the policies
9 developed by the State Board of Education pursuant to subsection B
10 of this section and the guidance within the dyslexia and dysgraphia
11 handbook developed pursuant to Section 1210.517 of ~~Title 70 of the~~
12 ~~Oklahoma Statutes~~ this title including policies and information
13 developed relating to universal screening of students for
14 characteristics of dyscalculia.

15 E. Beginning ~~June 30, 2026~~ June 30, 2028, and June 30 each year
16 thereafter, public school districts shall provide the following data
17 to the State Department of Education:

18 1. The number of students by grade level in grades two through
19 five who were screened for dyscalculia in a school year;

20 2. The number of students by grade level in grades two through
21 five who were newly identified as having characteristics of
22 dyscalculia in a school year;

23 3. The process or tools used to evaluate student progress;
24

1 4. The number of trained school system personnel or licensed
2 professionals used to administer the qualified dyscalculia screening
3 tool;

4 5. The number of students in grades two through five who were
5 participating in interventions within the school setting and the
6 number of students participating in interventions outside the school
7 setting; and

8 6. The programs used by districts for intervention within the
9 school setting.

10 F. The State Department of Education shall designate personnel
11 to provide technical assistance to implement the provisions of ~~this~~
12 ~~act~~ the Oklahoma Math Achievement and Proficiency Act.

13 G. By ~~December 31, 2026~~ December 31, 2028, and by December 31
14 each year thereafter, the State Department of Education shall
15 electronically provide a report containing all of the data provided
16 pursuant to subsection E of this section to the Governor and
17 Legislature and make the report available on the Department's
18 website.

19 H. As funds are available, ~~beginning with the 2026-2027 school~~
20 ~~year~~, the Department shall provide training on the best practices
21 for screening for dyscalculia.

22 I. The State Board of Education may promulgate rules to
23 implement the provisions of this section.

24 SECTION 7. This act shall become effective July 1, 2026.

1 SECTION 8. It being immediately necessary for the preservation
2 of the public peace, health, or safety, an emergency is hereby
3 declared to exist, by reason whereof this act shall take effect and
4 be in full force from and after its passage and approval.

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